

The Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 2013

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Union of India - Act

The Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 2013

UNION OF INDIA

India

The Narcotic Drugs And Psychotropic Substances Act, 1985

The Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 2013

Rule

THE-NARCOTIC-DRUGS-AND-PSYCHOTROPIC-SUBSTANCES-REGULATION-OF-CONTROLLED-SUBSTANCES-ORDER-2013 of 2013

Published on 26 March 2013

Commenced on 26 March 2013

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The Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 2013

Published vide Notification No. G.S.R. 191(E), 26th March, 2013

Last Updated 16th October, 2019

Ministry of Finance

(Department of Revenue)

G.S.R. 191(E). - In exercise of the powers conferred by section 9A of the Narcotic Drugs and Psychotropic Substances

Act, 1985 (

61 of 1985

) the Central Government hereby makes the following Order, namely:-

1.

Short title and commencement.

(1)

This Order may be called the Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 2013.

(2)

It shall come into force on the date of its publication in the Official Gazette.

2.

Definitions.

(1)

In this Order, unless the context otherwise requires,-

(a)

"Act" means the Narcotic Drugs and Psychotropic Substances Act, 1985 (61 of 1985

);

(b)

"Appendix" means the Appendix appended to this Order;

(c)

"Form" means a form annexed to this Order;

(d)

"Schedule" means the Schedules annexed to this Order.

(2)

Words and expressions used herein and not defined, but defined in the Act shall have the same meaning as defined in the Act.

3.

Power to include Controlled Substance in Schedules.

- The Central Government may, by notification in the Official Gazette, include any controlled substance in one or more Schedules.

4.

Prohibition of manufacture, trade and commerce, possession and consumption of controlled substance in 'Schedule-A'.

- [(1) No person shall manufacture, distribute, sell, purchase, possess, store, consume, offer for sale or distribution or mediate in the sale/purchase through website, social media or in any other manner of any controlled substance included in Schedule-A, without a unique registration number in Form-A, issued by the Zonal Director of the Narcotics Control Bureau]

[Substituted by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

:

Provided that the requirement of registration under this clause shall be complied within a period of 180 days of the coming into force of this Order:

Provided further that the Government or autonomous institutions, Schools or Colleges or Universities recognised by the Government, registered Scientific Societies and Hospitals using any controlled substance in Schedule-A for educational, scientific and analytical purposes are exempted from the registration.

(2)

Every application for registration under sub-clause (1) shall be made in Form-B to the Zonal Director of Narcotics Control Bureau having jurisdiction over the area.

(3)

The Zonal Director of Narcotics Control Bureau shall issue a unique registration number in Form-A or deny the registration within thirty working days from the date of receipt of an application in Form-B.

(4)

In case the registration number is not issued within the stipulated time period or denied, the Zonal Director of Narcotics Control Bureau or any other officer authorised by him in this regard shall inform the applicant the reasons thereof.

(5)

Every person who has been registered under sub-clause (1) shall maintain daily accounts in Form-C or Form-D, as the case may be and the records of the daily accounts shall be preserved for a minimum period of five years from the date of last entry.

[Provided that the requirement of maintenance of daily accounts is not applicable to persons who do not manufacture, distribute, sell, purchase, possess, store or consume controlled substances]

[Inserted by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

;

(6)

[Every person who has been registered under sub-clause (1) shall file quarterly return in Form-E, Form-F, or Form-L, as the case may be, to the concerned Zonal Director of the Narcotics Control Bureau having jurisdiction over the area]

[Substituted by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

.

(7)

The return of every quarter shall be filed before the last day of the month following that quarter.

(8)

Every person who has been registered under sub-clause (1) shall immediately report regarding any loss or disappearance of the controlled substance in Schedule-A to the concerned Zonal Director of Narcotics Control Bureau within whose area of jurisdiction such loss or disappearance occurred and a copy of the report shall also be endorsed to the Director General, Narcotics Control Bureau, New Delhi.

Explanation 1. - For the purpose of this clause, the area of jurisdiction of a Zonal Director of Narcotics Control Bureau shall be the area as specified in the Appendix.

Explanation 2. - For the purpose of this Clause, the expression "quarters" shall be January to March, April to June, July to September and October to December of every year.

5.

Surrender of registration.

- A holder of a registration number issued under sub-clause (1) of clause 4 may, if he so desires, surrender his registration by giving notice in writing to the issuing authority and obtaining acknowledgement therefor.

6.

Disposal of stocks on surrender of registration.

- The stocks of controlled substance in Schedule-A as may be in the possession of a holder of a registration number issued under sub-clause (1) of clause 4, on the surrender of his registration, shall be disposed of in such manner as may be specified by the issuing authority in this behalf

7.

Transport of controlled substance in Schedule-A.

(1)

No consignment of controlled substance in Schedule-A shall be moved from one place to another place, within India, except when it is accompanied by a consignment Note in Form-G.

(2)

The consignment Note shall be prepared in triplicate and the original and duplicate copies of the consignment Note shall be sent along with the consignment to the consignee, who shall return the duplicate copy to the consignor for retention after endorsing on the original and duplicate copies the particulars of quantity received by him.

(3)

In case of non-receipt of duplicate copy by the consignor, duly endorsed by the consignee acknowledging the receipt of the consignment of controlled substance, the consignor shall report loss or disappearance of the consignment in the manner provided in sub-clause (8) of clause 4 within forty-five days from the date of dispatch of the consignment.

(4)

In the case of any consignment of controlled substance in Schedule-A is imported into India, such consignment from the port of entry to any warehouse or factory or business establishment or premises of the importer or consumer, as the

case may be, shall be accompanied by a Bill of Entry.

(5)

The consignment Note or the Bill of Entry, as the case may be, shall be preserved for a minimum period of five years by the consignor and the consignee or importer, as the case may be.

(6)

No transporter shall carry any consignment of controlled substance in Schedule-A without a consignment Note or Bill of Entry.

(7)

The transporter shall produce the consignment Note or Bill of Entry, as the case may be, when required by an officer empowered under section 42 of the Act.

(8)

(a)

Whenever controlled substance in Schedule-A are transported by motorised tankers or otherwise by packages, all the inlets and outlets of such tankers or packages, as the case may be, shall be sealed with tamper-proof seals each of which shall have identifiable description and such seal shall be affixed at the premises of the consignor and removed at the premises of the consignee.

(b)

The description of tamper-proof seal affixed on such tankers or packages shall be entered on the consignment Note or Bill of Entry of each consignment.

(c)

No person shall use or possess any tamper-proof seal which has identifiable description on it identical to another tamper-proof seal.

(9)

Whenever a consignment of controlled substance in Schedule-A is transported from the area which comes within the jurisdiction of a Zonal Director of the Narcotics Control Bureau to an area which comes within the jurisdiction of another Zonal Director of the Narcotics Control Bureau, the consignor shall send a quarterly report to the latter Zonal Director in Form-H.

Explanation 1. - For the purpose of this clause, the expression "Bill of Entry" shall have the same meaning as defined in the Customs Act, 1962 (52 of 1962).

).

Explanation 2. - For the purpose of this clause, the jurisdiction of a Zonal Director of Narcotics Control Bureau shall be the area as specified in the Appendix.

8.

Selling of controlled substance in Schedule-A.

- No person shall sell a controlled substance in Schedule-A to a buyer who does not possess a valid registration number issued number sub-clause (1) of clause 4:

Provided that a controlled substance may be sold to a buyer specified in second proviso to sub-clause (1) of clause 4 without a registration number.

9.

Destruction of controlled substance in Schedule-A.

(1)

Any person intending to destroy a controlled substance in Schedule-A shall apply in Form-I to the concerned Zonal Director of the Narcotics Control Bureau having jurisdiction over the area.

(2)

The Zonal Director of the Narcotics Control Bureau shall, within a period of thirty days of the receipt of an application in Form-I, appoint a Committee comprising a Gazetted Officer of the Narcotics Control Bureau, Superintendent of Central Excise of the concerned range and an authorised representative of the applicant for supervising the destruction of controlled substance in Schedule-A and any such destruction shall be carried out within a period of thirty days from the appointment of the Committee.

Explanation. - For the purpose of this clause, the jurisdiction of a Zonal Director of Narcotics Control Bureau shall be the

area as specified in the Appendix.

10.

Export of controlled substance in Schedule-B.

(1)

No person shall export any controlled substance in Schedule-B except in accordance with the conditions of the No Objection Certificate issued by the Narcotics Commissioner.

(2)

Anyone who intends to export a controlled substance in Schedule-B shall apply to the Narcotics Commissioner in Form-J for a No Objection Certificate.

(3)

The Narcotics Commissioner shall issue or deny the No Objection Certificate within a period of twenty one working days from the date of receipt of application and in case the No Objection Certificate is not issued within the stipulated time period or denied, the Narcotics Commissioner or any other officer authorised by him in this regard shall inform the applicant the reasons thereof.

(4)

The No Objection Certificate for export issued by Narcotics Commissioner shall be valid for a single consignment only.

(5)

Every exporter shall submit the details and documents relating to the export, such as invoice, cargo manifests, customs, transport and shipping documents relating to the export of the controlled substance in Schedule-B which shall contain the details such as name of the controlled substance, quantity, name and address of the consignee, exporter and the importer, to the Narcotics Commissioner within a period of seven days of export.

11.

Import of controlled substance in Schedule-C.

(1)

No person shall import any controlled substance in Schedule-C except in accordance with the conditions of the No Objection Certificate issued by the Narcotics Commissioner.

(2)

Anyone who intends to import a controlled substance included in Schedule-C shall apply to the Narcotics Commissioner in Form-K for a No Objection Certificate.

(3)

The Narcotics Commissioner shall issue or deny the No Objection Certificate within twenty one working days from the date of receipt of application and in case the No Objection Certificate is not issued within the stipulated time period or denied, the Narcotics Commissioner or any other officer authorised by him in this regards shall inform the applicant the reasons thereof.

(4)

The No Objection Certificate for import issued by the Narcotics Commissioner shall be valid for a single consignment only.

(5)

Every importer shall submit the details and documents relating to the import, such as invoice, cargo manifests, customs, transport and shipping documents relating to the import of the controlled substance in Schedule-C which shall contain the details such as name of the controlled substance, quantity and the name and address of the consignee, exporter and the importer, to the Narcotics Commissioner within a period of seven days of import.

12.

Labelling of consignment for export or import.

(1)

Every container or vessel containing a controlled substance in a consignment for export or in a consignment which is imported shall be labeled prominently giving details of the name and quantity of the controlled substance, name and address of the exporter and importer and the consignee if any.

(2)

The documents relating to the import or export of the controlled substance such as invoice, cargo manifests, customs, transport and shipping documents shall contain the details such as name of the controlled substance, quantity and the

name and address of the consignee, exporter and the importer and the documents shall be preserved for a minimum period of five years.

13.

Repeal and savings.

(1)

The Narcotic Drugs and Psychotropic Substances (Regulation of Controlled Substances) Order, 1993 is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under the order repealed by sub-clause (1) shall, in so far as it is not inconsistent with the provisions of this order, be deemed to have been done or taken under the corresponding provisions of this order.

Schedule

[See clause 2(d)]

A (Schedule-A substances are those controlled substance whose manufacture, distribution, sale, purchase, possession, storage and consumption is subject to controls as specified in this Order.)

1. Acetic anhydride
2. N-Acetylanthranilic acid
3. Anthranilic acid
4. Ephedrine and its salts
5. Pseudoephedrine and its salts

B (Schedule-B substances are those controlled substance whose export from India is subject to controls as specified in this Order.)

1. Acetic anhydride
2. N-Acetylanthranilic acid
3. Anthranilic acid
4. Ephedrine, its salts and preparations thereof
5. Ergometrine and its salts
6. Ergotamine and its salts
7. Isosafrole
8. Lysergic acid and its salts
9. 3,4-methylenedioxyphenyl 2-propanone
10. Methyl ethyl ketone
11. Norephedrine (Phenylpropanolamine), its salts and preparations thereof
12. 1-phenyl 2-propanone
13. Phenylacetic acid and its salts
- 14.

Piperonal

15.

Potassium permanganate

16.

Pseudoephedrine, its salts and preparations thereof

17.

Safrole and any essential oil containing 4% or more safrole

18.

[4-Anilino-N-phenethylpiperidine (ANPP).

[Inserted by Notification No. G.S.R. 186(E), dated 27.2.2018 (w.e.f. 26.3.2013).]

19.

N-Phenethyl-4-piperidone(NPP)]

C (Schedule-C substances are those controlled substance whose import into India is subject to controls as specified in this Order.)

1. Acetic anhydride

2. N-Acetylanthranilic acid
 3. Anthranilic acid
 4. Ephedrine, its salts and preparations thereof
 5. Ergometrine and its salts
 6. Ergotamine and its salts
 7. Isosafrole
 8. Lysergic acid and its salts
 9. 3,4-methylenedioxyphenyl 2-propanone
 10. Methyl ethyl ketone
 11. Norephedrine (Phenylpropanolamine), its salts and preparations thereof
 12. 1-phenyl 2-propanone
 13. Phenylacetic acid and its salts
 14. Piperonal
 15. Potassium permanganate
 16. Pseudoephedrine, its salts and preparations thereof
 17. Safrole and any essential oil containing 4% or more safrole
 18. [4-Anilino-N-phenethylpiperidine (ANPP).
- [Inserted by Notification No. G.S.R. 186(E), dated 27.2.2018 (w.e.f. 26.3.2013).]
19. N-Phenethyl-4-piperidone(NPP)]

Appendix

Area of jurisdiction of a Zonal Director of Narcotics Control Bureau

Sl. No.

Area

Area jurisdictional Zonal Director of Narcotics Control Bureau

1.

Delhi, National Capital Region (NCR) and Haryana.

Zonal Director Narcotics Control Bureau, Delhi Zonal

Unit, West Block No.1, Wing No.7, 2nd Floor, R.K. Puram,
New Delhi ? 110066. Fax No. 011-26181449

2.

State of Rajasthan (excluding the areas of the

State included in National Capital Region)

Zonal Director, Narcotics Control Bureau, Jodhpur Zonal

Unit, Sector - 18E, Chaupasini Housing Board, Jodhpur,
Rajasthan, Fax No. 0291-2510092.

3.

States of Uttar Pradesh (excluding, the areas of
the State included in National Capital region) and Uttarakhand.

Zonal Director, Narcotics Control Bureau, B-912,

Sector-A, CID Colony, Mahanagar Lucknow, Uttar Pradesh, Fax
No. 0522-2339411.

4.

States of West Bengal, Odisha, Sikkim and Union

territory of Andaman and Nicobar islands

Zonal Director, Narcotics Control Bureau, Eastern Zonal

Unit, Kolkata, 4/2 Karaya Road, 3rd Floor, Kolkata, West
Bengal-700017 Fax No. 033-22891957.

5.

States of Maharashtra and Goa

Zonal Director, Narcotics Control Bureau, Mumbai Zonal

Unit,3rdFloor, Exchange Building, Sprott Road, Ballard
Estate,Mumbai, Maharashtra - 400001.

6.

States of Kerala, Tamil Nadu and the Union
territories of Puducherry and Lakshadweep
Zonal Director,Narcotics Control BureauChennai Zonal
Unit,C-3A, Rajaji Bhawan,Besant Nagar, Chennai, Tamil
Nadu ? 600090,Fax No. 044-24910937

7.

States of Punjab, Himachal Pradesh and the Union
territory of Chandigarh
Zonal Director,Narcotics Control Bureau,Chandigarh
Zonal Unit,Electric Store Building,Near Chitkara Int.
School,Sector -25(Wes), ChandigarhFax No. 0172-2780108

8.

State of Jammu and Kashmir
Zonal Director,Narcotics Control Bureau, Jammu Zonal
Unit,Chandan Vihar, H. No.1, Lane-1,Lower Roap Nagar,
Muthi Camp, Jammu,Jammu and Kashmir ? 180005,Fax
No. 00191-2598029.

9.

State of Gujarat and the Union territories of
Daman and Diu and Dadra and Nagar Haveli.
Zonal Director,Narcotics Control Bureau,Ahmedabad
Zonal Unit,2nd& 3rdFloor, Screen
Building,Drive-in-Cinema, Drive-in-Road,Thaltej,
Ahmedabad, Gujarat - 380 054,Fax No. 079-27497330

10.

States of Madhya Pradesh and Chhattisgarh
Zonal Director,Narcotics Control Bureau,Indore Zonal
Unit,19/C/A/SLICE-5, Scheme No. 78,"Aranya",
P.O.-Vijay Nagar,Indore, Madhya Pradesh ? 452010,Fax
No. 0731-2557701.

11.

States of Bihar and Jharkhand
Zonal Director,Narcotics Control Bureau,Patna Zonal
Unit 67, Kautilya Nagar,Near VB College Patna-14, Bihar,Fax
No. 0612-2296159.

12.

States of Assam, Arunachal Pradesh, Meghalaya,
Mizoram, Nagaland, Tripura and Manipur
Zonal Director,Narcotics Control Bureau,Guwahati
Zonal Unit,House No. 25, S.K. Baruah Road,1stbye-lane,
Dispur, Guwahati, Assam - 781006.Fax No. 0361-2229375

13.

States of Karnataka and Andhra Pradesh
Zonal Director,Narcotics Control Bureau,Bangalore
Zonal Unit,7/1&2, Priyanka Vilas, Ramanna
GardenKattigenahalli, Baglur Main Road,Post - Air Force
Station Yelahanka,Bangalore, Karnataka ? 560063,Fax
No. 080-28478316

Form-A

[See sub-clause (1) of clause 4]

[Registration for manufacture/distribution/sale/purchase/possession/storage/consumption/offer for sale or distribution or mediate in sale/purchase through website, social media or in any other manner of controlled substances in Schedule-A]

[Substituted 'Registration for manufacture / distribution / sale / purchase / possession / storage / consumption of controlled substance in Schedule-A' by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

Registration No _____

Date of issue: _____

_____ (Name and address) _____ is hereby registered to (strikeout whichever is not applicable)

(1)

Manufacture (2) Distribution

(3)

Sale (4) Purchase

(5)

Possession (6) Storage

(7)

Consumption (8) Others (Please specify)

following controlled substance in Schedule-A

Sl. No.

Name of controlled substance in Schedule-A

Details of the premises

2. This registration is subject to the conditions stated below and to such other conditions as may be specified in the order for the time being in force under the Narcotic Drugs and Psychotropic Substances Act, 1985 (61 of 1985

).

Signature

Name in block letter

Designation

Conditions of registration

1. This registration is not transferable.

2. This registration shall be kept on the approved premises and shall be produced at the request of an officer designated / authorised for the purpose by the authority issuing this registration.

3. No controlled substance in Schedule-A, other than the substance for which this registration has been issued, shall be manufactured in the respective premises mentioned herein.

4. The holder of this registration shall inform the authority issuing this registration in writing in the event of any change in the constitution of the person or the entity operating under the registration. Where any change in the constitution of the person or the entity takes place the current registration shall be deemed to be valid for a maximum period of three months from the date on which the change takes place, unless in the meantime, a fresh registration has been taken from the authority issuing this registration in the name of the person or the entity with the changed constitution.

Form-B

[See sub-clause (2) of clause 4]

[Application for registration for manufacture/distribution/sale/purchase/possession/storage/consumption/offer for sale or distribution or mediate in sale/purchase through website, social media or in any other manner of controlled substances in Schedule-A]

[Substituted by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

[****]

For

Official Use only

Registration

No.

Date
of Issue

Part-I

(A)
Name of the controlled substance and its salts in Schedule-A for which registration is applied for:

1.
) _____
2.
) _____
3.
) _____
4.
) _____
5.
) _____

(B)
Purpose for which registration is applied for (Please put ? in appropriate box):

- (1) Manufacture (2) Distribution
(3) Sale (4) Purchase
(5) Possession (6) Storage
(7) Consumption (8) Others (Please specify)

Part-II

(A)
Name of the Applicant

(B)
Complete postal address with PIN Code / Telephone / Fax Number (with city code) / e-mail ID:

(C)
Details of Permanent Account Number (PAN):

(D)
Constitution of the business (Please put ? in appropriate box)

- Proprietorship
Partnership
Registered
Company
Unregistered
Company
Trust
Society
Others

(Please specify)

Note: In the case of a partnership firm, details of partnership / in the case of a registered / unregistered Company, details of the Chairman / Managing Director / Director / Chief Executive Officer / in the case of Society / Trust, Details of the Chairman / President and Members / Trustee / in case of others, details of the key personnel engaged in the management of the business are to be provided in a separate sheet. Details should include name / contact details {complete postal address with PIN Code / Telephone / Fax Number (with city code) / e-mail ID} / copy of photo identity card issued by a Government Organisation / Election Commission / Details of conviction pending cases under the Narcotic Drugs and Psychotropic Substances Act, 1985.

(E)

Complete postal address of business premises with PIN Code / Telephone / Fax Number (with city code) / e-mail ID:

(F)

Complete postal address of Head Office with PIN Code / Telephone / Fax Number (with city code) / e-mail ID (if different from that given above):

(G)

Definite boundaries of the business premises :

(Description should correspond to the land revenue records)

1.

) North : _____

2.

) South : _____

3.

) East : _____

4.

) West : _____

(H)

Details of property holding rights of the applicant with respect to the business premises for which registration is applied for (Please put ? in appropriate box):

Ownership

Lease/Rent

If owned whether

Mortgaged

Hypothecated

Please specify details of mortgage/hypothecation

(I)

Name designation and address of the person signing this Application Form and of the authorised persons:

1.

) Person signing this Application Form:

Name

Designation

Address

Contact numbers

e-mail ID

Conviction / pending cases under the Narcotic

Drugs and Psychotropic Substances Act, 1985 (If yes, details should be given in a separate sheet)

Yes (Y)/No (N)

Specimen signature

One copy of photo identity card issued by a

Government Organisation / Election Commission to be attached.

Note: (1) Above details in respect of all authorised persons shall be given in a separate sheet.

(2)

Copy of the authorisation letter in respect of all persons shall be attached.

Part-III

(A)

Business transaction Numbers obtained from Government Agencies / Departments:

Validity up to

Central excise registration number

Central sales tax number

State sales tax number

Sales tax registration number

Customs registration number

Directorate General of Foreign Trade's Import

Export Code Number

Registrar of Companies CIN Number

Licence(s) issued under the Drugs and Cosmetics

Act, 1940

Others (please specify)

Declaration

I, _____ hereby declares that the information given in this Application Form is true, correct and complete in every respect and that I am authorised to sign on behalf of the applicant.

Date:

Place:

(Signature of the applicant/authorised person with stamp)

List of enclosures:

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Note:- (1) Application Form should be signed on each page by the applicant/authorised person.

(2)

Any information not available at the time of submitting this Application Form shall be provided as and when available, even after the issue of registration.

Form-C

[See sub-clause (5) of clause 4]

Register of manufacture of controlled substances in Schedule-A

Registration number issued under sub-clause (1) of clause 4: _____

Month: _____

Name of controlled substance: _____

Date

Quantity in hand at the beginning of the day

Quantity of the substance manufactured

Details of quantity of controlled substance sent
out of the factory

Serial No.

Quantity sent

To Whom sent (Registration number, name and
address of the person and location of the premises to be given)

1

2

3

4

5

6

Total quantity sent out of the factory

Handling losses, if any

Quantity in hand at the close of the day

Initial of the authorised person

7

8

9

10

Note:- (1) The quantity shall be indicated in kilograms.

(2)

This record shall be maintained on day-to-day basis and entries shall be made for each day the establishment opens for work irrespective of whether there is any transaction or not and entries shall be completed for each day before the close of the day and the person authorised to maintain the accounts shall put his initial after the entries. Each page of the register shall contain the running serial number.

(3)

If more than one controlled substance is dealt with, separate register shall be maintained for each of such substances.

Form-D

[See sub-clause (5) of clause 4]

Register of consumption, sale, import or export of controlled substance in Schedule-A

Registration number issued under sub-clause (1) of clause 4: _____

Month: _____

Name of controlled substance: _____

Date

Quantity in hand at the beginning of the day

Details of quantity of the substance

received / imported

Sl. No.

Quantity

From whom received (Registration number, name and address of the person to be given)

Consignment Note / Bill of Entry No.

1

2

3

4

5

6

Details of quantity of the substance

distributed/sold/exported/consumed

Sl. No.

Quantity

To whom sold / sent (Registration number, name and address of the person and location of the premises to be given)

Consignment Note / Issue Slip No.

Consumed

Purpose for consumption

7

8

9

10

11

12

Handling loss, if any

Quantity in hand at the close of day

Initial of the authorised person

13

14

15

Note:- (1) The quantity shall be indicated in kilograms.

(2)

This record shall be maintained on day-to-day basis and entries shall be made for each day the establishment opens for work irrespective of whether there is any transaction or not and entries shall be completed for each day before the close of the day and the person authorised to maintain the accounts shall put his initial after the entries. Each page of the register shall contain the running serial number.

(3)

If more than one controlled substance is dealt with, separate register shall be maintained for each of such substances.

(4)

In case of import/export, in place of registration number, number and date of the No Objection Certificate issued by the Narcotics Commissioner shall be indicated.

(5)

Strike out whichever is not applicable.

Form-E

[See sub-clause (6) of clause-4]

Quarterly return of manufacture of controlled substance in Schedule-A

Return for the quarter ending on.....

1. Registration number issued under sub-clause (1) of clause 4

2. Name of the manufacturer

3. Address

4. Name of the controlled substance

5. Opening balance of the controlled substance at the beginning of the quarter

6. Details of manufacture and sale

Manufacture

Sale

Date

Quantity

Date

To whom sold (Registration Number, Name and address of the person and location of the premises)

Consignment Note No.

Quantity

Total

Total

7. Closing balance at the end of the quarter

8. Whether the return is filed within the due date: Yes / No

9. If the return is not filed within the due date, specify details of the fine paid for delay in submission of the return

Certified that the information given below is correct and the relevant records are available with me/us.

Signature:

Name:

Designation:

Date.....

Note:- (1) The quantity should be indicated in kilograms.

(2)

For each controlled substance, separate return shall be sent.

(3)

This return is to be sent to the concerned Zonal Director of the Narcotics Control Bureau.

(4)

In case of import/export, in place of registration number, number and date of the No Objection Certificate issued by the Narcotics Commissioner shall be indicated.

Form-F

[See sub-clause (6) of clause 4]

Quarterly return of receipt, import, sale, consumption or export of controlled substance

Return for the quarter ending up.....

1. Registration number issued under sub-clause (1) of clause 4

2. Name of the seller, distributor, exporter, importer or consumer

3. Address

4. Name of the controlled substance

5. Opening balance of the controlled substance at the beginning of the quarter

6. Details of quantity received and sold, consumed or exported

Receipt / Import

Date

Received / (imported from whom (Name
and address of the person)

Consignment Note No. / Bill of Entry

No.

Quantity received / imported

Total

Sale, Consumption or export

Date

To whom sent (Name and address of the person)

Consignment Note No.

Quantity sold / consumed / exported

Total

7. Closing balance at the end of the quarter

8. Whether the return is filed within the due date: Yes/No

Certified that the information given above is correct and the relevant records are available with me/us.

Signature:

Name:

Designation:

Date

Note:- (1) The quantity should be indicated in kilograms.

(2)

For each controlled substance, separate return shall be sent.

(3)

Strike out whichever is not applicable.

(4)

In case of import/export, number and date of the No Objection Certificate issued by the Narcotics Commissioner shall be indicated under the column imported from whom /to whom sent.

(5)

This return is to be sent to the concerned Zonal Director of the Narcotics Control Bureau.

Form-G

[Sub-clause (1) of clause 7]

Consignment Note

(To accompany a consignment of controlled substance)

Sl. No.

Date and time of dispatch of the consignment

1

Registration Number of the consignor issued
under sub-clause (1) of clause 4:

2

Name and address of the consignor:

3

Name and address of the consignee:

4

Registration number of the consignee issued
under sub-clause (1) of clause 4:

5

Description and quantity of the consignment:-

Particulars of Controlled Substance

No. of package

Quantity (in Kilogram)Gross

Weight Net Weight

6

Mode of transport (Particulars of the transporter, registration number of the vehicle, RR./ L.R. if the Transport is by
Railway or Goods Transport, if any).

7

The total number of temper-proof seals affixed on motorised tankers/other packages and each of their description.

Signature of the consignor with date(Name in capital letters)

7

Date and time of receipt by the consignee and his remarks

Signature of the consignor with date(Name in capital letters)

Note:- (1) The consignment Note should be serially numbered on annual basis.

(2)

The consignor should record a certificate on the cover page of each book containing consignment Notes indicating the
number of pages contained in the consignment Note-Book.

(3)

The books containing consignment Notes used or currently under use shall be produced to the authorised officer
whenever called upon.

Form-H

[See sub-clause (9) of clause 7]

Quarterly report on transport of controlled substance to a consignee outside the zone of a consignor

Return for the quarter ending on

1. Registration Number of the consignor issued under sub-clause (1) of clause 4 :

2. Name of the consignor :

3. Address :

4. Name of the controlled substance :

5. Details of the consignments sent to the area of jurisdiction of the Zonal Director, Narcotics Control Bureau to whom
the report is sent.

Sl. No.

Dated on which sent

Quantity

To whom sent (indicate
registration number issued under sub-clause (1) of clause 4, name
and address)

Consignment Note No.

Mode of transport

Signature:

Name in block letter:

Designation:

Date

Note:- (1) The quantity shall be indicated in kilograms

(2)

For each controlled substance a separate return shall be sent.

Form-I

[See sub-clause (1) of clause 9]

Application for destruction of Controlled Substance in Schedule-A

1.

Registration Number issued under sub-clause (1) of clause 4

2.

Name and address of the applicant

3.

Name of the controlled substance

4.

Quantity of controlled substance to be destroyed

5.

Type of packing and number of packages

6.

Place of storage of the controlled substance, if different
from Sr.No. 2 above

7.

Reasons why such destruction is required

8.

Manner and place where the controlled substance is proposed to
be destroyed.

9.

Whether the quantity of controlled substance is appearing in
Form 2 or 3 Register, if yes enclose copy of the relevant page of
the register.

10.

Whether the quantity of controlled substance is appearing in
the returns filed, if yes enclose copy of the last return filed.

Signature:

Name:

Designation

Date:

Place:

Note:- (1) The quantity shall be indicated in kilograms.

(2)

For destruction of each controlled substance in Schedule-A, separate application shall be sent.

(3)

This application is to be sent to the concerned Zonal Director of the Narcotics Control Bureau.

Form-J

[See sub-clause (2) of clause 10]

Application form for export of controlled substance in Schedule-B

1. Exporter (name, address, telephone and fax

number) Drug / Trade Licence number:

2. NOC Number : Date of issue : Place of

Issue : *Valid upto : (To be filled up by Central Bureau of
Narcotics)

3. Central

Excise registration number and Issuing authority

4. Importer (name and address)

Licence or registration number

5. Issuing authority (name, address and

tele-facsimile numbers) : Narcotics Commissioner of

India, Central Bureau of Narcotics, Ministry of Finance, 19,

The Mall, Morar, Gwalior, Madhya Pradesh-474006, INDIA Tel.

No. : 91-751-2368121 and 2368996/2368997 Fax No.

91-751-2368111/2368577 Website: <http://cbn.nic.in>,

<https://cbnonline.gov.in> Email.

,

6. Other operator / agent (name and address)

7a. Import Certificate / NOC No. 7b. Issuing

authority (name and address) Telephone No. : Fax number

:

8. Ultimate Consignee (in case of re-sale) (name
and address)

9. Point of exit from India

10. Mode of transport

11. Point or entry into importing country

12. Route

13. Full name of substances to be exported

Quantity

Weight/Volume per unit

14. HS number

15 CAS number

16 Net weight of controlled substance: (In

Kilograms)

(1)

Number of packets/cartons:

17. % of mixture :

Weight/Volume of each packet/carton

Cost per unit/kg

In Rs.

In US\$.....

18. Invoice number :

Total cost

In Rs.

In US\$.....

BACKGROUND

INFORMATION TO BE SUBMITTED BY EXPORTERS

(The questions below are information about transaction and are intended to assist the Central Bureau of Narcotics to deal expeditiously with this application Failure to provide full answers may lead to a delay in the issue of the NOC)

19. Is the export for the purpose of re-export? If so please provide details.

?.....

YES/NO

20. Has your company been authorised previously by the Central Bureau of Narcotics to export the chemical(s)? If so, please provide references and dates for last 3 exports.

YES/NO

(1)

(2)

(3)

21. Is the consignee a new customer for this chemical, If so, what is nature of customer's business??.....?

YES/NO

To what use will the chemicals be put??.....

22. Was the order made directly or through a broker? If through broker please provide name and address:??.....?

YES/NO

23. a) What is the means of payment for the transaction?

(b) Name and address of payee

(c) Name and address of banker who will remit the payment

(d) Name and address of the bank in which the payment will be received

24. Please give details of customer's instructions for packaging and labeling of consignment:.....

25. Is the consignment destined for, or will it transit, a free trade zone, free port or bonded warehouse? If so please provide details:.....

YES/NO

26. Has authorisation for the import been obtained from the competent authorities of the importing country?

YES/NO

As evidence please attach original copies of import authorisation / NOC and any other relevant documentation.

27. Are you a manufacturer exporter? If so, from where you procure the raw material / finished product" Name and address of supplier / manufacturer along with the quantity and price thereof. Copy of the drug licence of the supplier of the raw material, wherever applicable.

YES/NO

28. Are you a trader exporter? If so, from where you procure the controlled substance(s)? Name and address of supplier / manufacturer along with the quantity and price thereof.

Copy of the drug licence of the supplier / manufacturer of the controlled substance(s), wherever applicable.

29. Declaration by applicant

I confirm that, to the best of my belief, all the information provided in this application is true.

Signature ?.....

Position in company firm ?.....

Name ?.....

(Applicant)

Stamp Seal

Representing

?.....

Date ...?.....

Stamp Seal ?.....

List of documents to be submitted along with application form

(i)

copy of the registration under sub-clause (1) of clause 4 of this order if the controlled substance is also in Schedule-A

(ii)

Purchase order placed by the buyer/agent for the proposed export;

(iii)

Original import certificate issued by the competent authority of the importing country (wherever applicable);

(iv)

In case the exporter is manufacturer, copy of valid drug manufacturing licence along with list of products as approved by the State Drug Control Authority, if the controlled substance intended to be exported falls under the category of drugs;

(v)

In case the exporter is trader, copy of valid licence to sell, stock or exhibit (or offer) for sale and distribution of drugs issued by State Drug Control Authority. Also a copy of the drug licence of the supplier/manufacturer of the controlled substance(s), wherever applicable.

(vi)

Intended end-use declaration from the importer/ultimate consignee.

List of additional documents to be submitted by first time exporter of controlled substances

(a)

Complete postal address and telephone, fax no. of various factories of the company manufacturing controlled substances including Jurisdictional Central Excise division and Central Excise Commissionerate and Zonal office of Narcotics Control Bureau in respect of factories.

(b)

List of controlled substances being manufactured by the company and details of controlled substances by the company in the last three calendar years (1st January to 31st December).

(c)

Details of export/import of controlled substances by the company during the last three calendar years (1st January to 31st December).

(d)

Name, address, telephone Nos. and Fax No. of the Chairman, Managing Director and other Directors, proprietor partners, in charge of production and finance.

(e)

Sales Tax/VAT Registration No., Central Excise Registration No. and Company's PAN No., Import-Export code, Certificate of incorporation of company along with memorandum and article of association of company/partnership deed (Attested copies of these documents shall also be submitted.)

(f)

Name of concerned Jurisdictional Commissionerate of Customs and Central Excise.

(g)

Financial statement of Company / firm for last three years.

(h)

Profile of the company.

(i)

Details of two authorised signatories of the company / firm along with their specimen signature of the authorised signatories duly authorised by the Board of Directors / Proprietor / Partner of the company / firm.

Form-K

[See sub-clause (2) of clause 11]

Application form for import of controlled substance in Schedule-C

1. importer (name,
address, telephone and fax number) :Drug Trade

Licence number :

Central Excise registration number and Issuing
authority, :

2 NOC Number:Date of issue :Place of
issueValid up-to :(To be filled up by Central Bureau
of Narcotics)

3. Expected date of dispatch.

4. Exporter (name and address).Licence
register number

5. Issuing authority (name, address and
telefacsimile numbers) :Narcotics Commissioner of
India,Central Bureau of Narcotics, Ministry of Finance19,
The Mail Morar, Gwalior, Madhya Pradesh - 474 006, INDIA
Tel No. 91-751-2368121 and 22368996/2368997Fax. No.
91-751-2368111/2368577Website <http://cbn.nic.in>
<https://cbnonline.gov.in>.Email

,

6. Other operator/agen (name and address

7a. Drug Controller's
recommendation :7b. issuing authority (name and address) :
Telephone no:Fax number:

8. Ultimate Consignee (in case of re-sale) (name
and address):

9. Point of entry in India

10 Mode of Transport,

11. Point of exit from exporting country:

12. Route:

13. Full name of substances to be Imported,
Quantity

Weight/Volume per unit

14 HS number

15 CAS number

16 Net weight of controlled substance (In
Kilograms)

(1)

Number of

packets/carton :Weight/Volume of each packet/carton :

Cost per unit/kgTotal cost :

In Rs.....

In ?.....US \$

17. % mixture:

In Rs.....

In.....US \$

18. Invoice number

List of documents to be submitted along with the application

(i)

copy of the registration under sub clause (1) of clause 4 of this order if the controlled substance is also in Schedule-A.

(ii)

Copy of agreement / contract / purchase order confirmation with the overseas seller.

(iii)

Licence to import drugs for the purpose of examination, test or analysis (Form II of the Drugs and Cosmetic Rules 1945) issued by Drug Controller General (India) if the import is meant for test and analysis.

(iv)

Licence to import drugs (Form 10 of Drug and Cosmetic Rules 1945) issued by Drug Controller General (India) if the import is meant for trading or used for manufacturing formulation.

(v)

Disposal details in respect of controlled substances imported earlier;

(vi)

In case of manufacturer, copy of valid drug manufacturing licence along with list of products as approved by the State Drug Control Authority, wherever applicable.

(vii)

In case of trader, copy of valid licence to sell, stock or exhibit (or offer) for sale and distribution of drugs issued by State Drug Control Authority, wherever applicable.

List of additional documents to be submitted by first time importer of controlled substances

(a)

Complete postal address and telephone, fax no. of various factories of the company manufacturing controlled substances including Jurisdictional Central Excise division and Central Excise Commissionerate and Zonal office of Narcotics Control Bureau in respect of factories.

(b)

List of controlled substances being manufactured by the company and details of controlled substances by the company in the last three calendar years (1st January to 31st December).

(c)

Details of export / import of controlled substances by the company during the last three calendar years (1st January to 31st December).

(d)

Name, address, telephone Nos. and Fax No. of the Chairman, Managing Director and other-Directors, proprietor / partners, in charge of production and finance.

(e)

Sales Tax VAT Registration No., Central Excise Registration No. and Company's PAN No., Import-Export code, Certificate of incorporation of company along with memorandum and article of association of company partnership deed (Attested copies of these documents shall also be submitted.)

(f)

Name of concerned Jurisdictional Commissionerate of Customs and Central Excise.

(g)

Financial statement of Company / firm for last 3 years.

(h)

Profile of the company.

(i)

Details of two authorised signatories of the company / firm along with their specimen signature of the authorised

signatories duly authorised by the Board of Directors / Proprietor / Partner of the company firm.

[Form-L]

[Inserted by Notification No. G.S.R. 779(E), dated 14.10.2019 (w.e.f. 26.3.2013).]

(See sub-clause (6) of clause 4)

Quarterly Return For Inquires Hosted/dealt by Broker/b2b Portals For Controlled Substances In Schedule-A

Return for the quarter ending on

1. Registration number issued under sub-clause..... ofclause.....

2. Name of the Broker/Intermediary Portal.....

3. Address.....

.....

4. Portal details.....

.....

5. Total Enquiries hosted during the quarter.....

6. Details of the enquiries hosted by the Broker/B2B Platform for seller/supplier, distributor, exporter of consumer of controlled substances: -

Date of enquiry/registr ation posting

Controlled substance and quantity, if any and
rate quoted

Name, address, telephone no, email of intending
buyer

URN No. issued by

IP address

Payment details

PAN/CIN/ GST No./IEC code drug license

Copy of the registration obtained

7. Details of the enquiries hosted by the Broker/B2B Platform for Importer, Buyers or users of controlled substances: -

Date of enquiry/registration posting

Controlled substance and quantity, if any and
rate quoted

Name, address, telephone no, email of intending
buyer

URN No. issued by

IP address

Payment details,

PAN/CIN/ GST No./IEC code drug license

Copy of the registration obtained

Certified that the information given above is correct and the relevant records available with me/us.

Signature.....

Name.....

Designation.....

Date.....

Note: The details of the enquiries for domestic sale purchase of controlled substance other than Schedule-A need not be filed.

Related AI tags, queries and research notes

Translation